

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2016-4829

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF PATRICIA KOHLER,
LICENSE NO. LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Patricia Kohler ("Applicant") as follows:

1. By application dated August 2, 2016, Applicant applied for licensure to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado ("Application").
2. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2016-4829. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
4. Applicant admits the following:
 - a. On or about August 2, 2016, Applicant applied for licensure as a LPC in the State of Colorado, and her licensure request is currently pending.
 - b. On her Application, Applicant answered "yes" to question 6 which states: "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol (DUI/DWI/DWAI/OWI)?"
 - c. On or about May 11, 2015, Applicant pled guilty to DWAI, a misdemeanor, in Case No. 2015T1516, in County Court, Larimer County,

Colorado. She was sentenced to two (2) months of supervised probation, followed by four (4) months of unsupervised probation and random urinalysis tests.

d. On or around December 15, 2016 Applicant submitted to an evaluation, and the evaluator concluded that Applicant is not safe to practice professional counseling without treatment and monitoring.

e. Applicant admitted to a DWAI conviction.

5. By virtue of the facts admitted in paragraph 4 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(e), C.R.S., which states:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

6. By virtue of the admissions contained in paragraphs 4 and 5, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

PROBATION

7. Applicant's license shall be placed on probation for a minimum period of one (1) year. Credit toward satisfying the period of probation shall be given only during such periods of time that Applicant is in total compliance with all provisions of this Order. The prescribed period of probation shall not run during any period of time when:

a. Applicant is not practicing as a LPC or engaged in the practice of professional counseling in the State of Colorado;

b. Applicant is not actively participating in a Board-approved peer assistance services program as set forth below in paragraphs 8 and 9 of this Order; and

c. Applicant is not otherwise in full compliance with the terms of this Order.

PEER ASSISTANCE SERVICES

8. As a term of this Order and Applicant's probationary status, Applicant shall enter into and successfully complete a contract with Peer Assistance Services ("PAS") for a minimum period of one (1) year, or until successful completion of the probationary terms and conditions ordered herein, whichever occurs later.

9. Applicant shall enter into a contract with PAS within fourteen (14) days from the effective date of this Order. Applicant agrees to cease the practice of professional counseling after fourteen (14) days until such time as Applicant enters into a contract with PAS.

a. Urine/Blood Screens. As a term of her contract with PAS, Applicant shall submit to full panel urine or blood tests during participation in PAS, as ordered by the Board, Applicant's employer, or Applicant's treatment program monitor, at a frequency determined by Applicant's treatment program contract. All screens or tests shall be administered and monitored by approved program personnel. An overly dilute or missed urine screen or blood test shall be presumed positive for prohibited substances. Use or ingestion of poppy seeds or hemp oil shall not excuse a positive urine screen or blood test. Applicant must submit satisfactory verified test results for all random urine screening or blood testing conducted as part of Applicant's treatment program with Applicant's application for discharge of the probation period.

b. Abstinence From Addictive Substances. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug or controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

c. Other Requirements. Applicant shall comply fully and in a timely manner with all requirements, recommendations, restrictions, and directions of the treatment program, as specified in the PAS contract signed by Applicant.

d. Releases. Applicant hereby waives any right or claim of confidentiality to any information, test results, or other data pertaining to Applicant's treatment progress, or lack thereof, with PAS, and will execute a release authorizing PAS to release any and all information pertaining to Applicant's case to the Board upon its request. Applicant shall keep all releases current and in effect.

e. Completion of Program. If Applicant satisfactorily completes the treatment program, verification to the Board by PAS of the completion of treatment shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Board to

verify Applicant's completion of treatment. It is Applicant's responsibility to ensure that PAS submits verification to the Board of completion of treatment.

f. Withdrawal from Program. Applicant must immediately notify the Board in writing if Applicant withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in Applicant's treatment program.

TERMS AND CONDITIONS

10. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

11. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

12. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

13. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

14. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to

comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

20. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

21. This Order shall be admissible as evidence at any hearing held before the Board.

22. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT

Patricia L Kohler
PATRICIA KOHLER 3/29/17
LPC (Pending)

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

DCh
DARCIE MAGNUSON
Program Director

Effective this 3rd day of
April, 2017.